

STATE OF NEW YORK

8234--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. HAWLEY -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 220 of the laws of 1976 incorporating the Brockport Exempt Fireman's Benevolent Association, Monroe county, New York, and providing for its powers and duties, in relation to its purpose and the use of foreign fire insurance premiums

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Sections 1, 2, 3 and 7 of chapter 220 of the laws of 1976 incorporating the Brockport Exempt Firemen's Benevolent Association, Monroe county, New York, and providing for its powers and duties, are amended to read as follows:

Section 1. Incorporation; membership. A membership corporation by the name of "Brockport Exempt Volunteer ~~Firemen's~~ Firefighters' Benevolent Association, Inc." is hereby created. It shall be composed of such persons eligible to membership therein as hereinafter provided as shall (a) notify the secretary of the Brockport Fire ~~Department~~ District, a volunteer fire ~~department~~ district, in writing prior to the organization meeting hereinafter provided for of the corporation created by this act of their desire to become members, or (b) shall attend such meeting or an adjournment thereof, and also such persons so eligible as may thereafter become members of such corporation pursuant to its by-laws.

§ 2. Persons eligible to membership. All persons who are now, or have been, or hereafter shall be active volunteer members of the fire department of the village of Brockport, in the town of Sweden, county of Monroe, or of any fire company in ~~[such village]~~ the Brockport Fire District and who have acquired or shall hereafter acquire the status of exempt volunteer ~~firemen~~ firefighter as defined in section ~~[two hundred]~~ 200 of the general municipal law by virtue of having rendered service in such fire department, fire district or fire company, and all

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 persons who are now or hereafter shall be active volunteer members of
2 such fire ~~[department]~~ district, shall be eligible for membership in the
3 corporation created by this act, except that any ~~[fireman]~~ firefighter
4 who has been removed for cause, expelled or dropped from the rolls of
5 any fire company or fire department, and who has not been reinstated
6 therein, shall not be eligible for membership in such corporation. The
7 membership of any person in such corporation shall terminate when ~~[his]~~
8 their membership as an active volunteer member of the fire ~~[department~~
9 ~~of the village]~~ district of Brockport shall terminate before such person
10 shall have acquired the status of exempt ~~[fireman]~~ firefighter as
11 defined in section ~~[two hundred]~~ 200 of the general municipal law by
12 virtue of having rendered service in such fire ~~[department]~~ district.

13 § 3. Purposes. The purposes of such corporation shall be the mainte-
14 nance of suitable headquarters for, and the promotion of fraternal
15 intercourse among the members of such corporation, the relief, aid and
16 assistance of such members and their families who are injured, disabled
17 or indigent, and the promotion of the welfare of the volunteer fire
18 service within the ~~[village of Brockport and]~~ territory provided with
19 fire protection by ~~[contract with such village]~~ the Brockport Fire
20 District, to promote and safeguard the welfare of the volunteer members
21 of the corporation and their families; to provide for the health and
22 safety of the volunteer members of such corporation; and to enhance the
23 morale of volunteer members of the corporation by providing social and
24 recreational activities for the volunteer members of the corporation.

25 § 7. Precept for payment of foreign fire insurance premium taxes. Such
26 corporation shall collect and there shall be paid to it all taxes
27 imposed by section ~~[five hundred fifty three]~~ 9104 of the insurance law
28 for fire department use and benefit, upon premiums for insurance against
29 loss or damage by fire covering property situated in the village of
30 Brockport, ~~[in the]~~ town of Sweden, county of Monroe, or within any duly
31 organized territory in which the Brockport Fire ~~[Department]~~ District is
32 or may be obligated to render fire protection. The officer of said
33 corporation designated by its by-laws to collect and receive the afore-
34 said tax shall have all the powers and be subject to all the provisions
35 of the insurance law, relating to treasurers of fire departments. Such
36 corporation shall also be entitled to receive a share of the tax imposed
37 by section ~~[five hundred fifty four]~~ 9105 of the insurance law, based
38 upon the business written in the territory with respect to which it is
39 entitled to collect and receive the tax under section ~~[five hundred~~
40 ~~fifty three]~~ 9104 of the insurance law. Such taxes shall only be used
41 ~~[for the care and relief of disabled or indigent volunteer and exempt~~
42 ~~volunteer firemen and their families]~~ by the corporation in furtherance
43 of its purposes as set forth in section three of this act.

44 § 2. This act shall take effect immediately; provided, however, that
45 the amendments to section 7 of chapter 220 of the laws of 1976 made by
46 section one of this act shall apply to taxes due on premiums received on
47 and after January 1, 2026.